

#	Case Name	Tentative
1.	KOPICK, INC. VS. EPLEX, INC. 2025-01491949	MOTION TO BE RELIEVED AS COUNSEL OF RECORD The motion of attorneys Samuel Yu and Daniel Yu and law firm Kahana & Feld LLP to be relieved as counsel for defendant Jungwoo Lee is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorneys will be relieved as counsel of record for client effective upon filing of proof of service of the signed order on client. Moving attorney to give notice.
3.	NGUYEN VS. UNITED LENDER, LLC. 2020-01124778	MOTION TO LIFT STAY Defendant/Cross-Complainant United Lender, LLC's Motion to Lift Stay, Disburse Receivership Funds, and Disburse Interest and Costs Accrued During Appeal is GRANTED. <u>Procedural History:</u> On 7/20/21, the Court appointed a receiver under Code of Civil Procedure section 564(b)(11) with regard to the subject real property at 6475 Marigayle Circle in Huntington Beach. On 6/3/22, the Court granted the receiver authority to sell the property. The receiver sold the property for \$3,465,000 and escrow closed on 6/15/22. On 3/12/24, the Court granted summary judgment in favor of United Lender on Plaintiff's operative complaint. On 9/3/24, the Court ordered disbursement of \$2,756,108.33 in funds from sale of the subject property to United Lender. On 9/23/24, the Court granted Plaintiff's ex parte application to stay disbursement of the funds pending resolution of the appeal. On 3/19/26, the Court of Appeal issued its remittitur after upholding this Court's grant of summary judgment in favor of United Lender. Now, Defendant seeks disbursement of the previously awarded funds plus additional interest of \$375,091.67. Defendant further requests an order that the receiver disburse all remaining funds from the sale, minus a holdback of \$200,000 for the receiver's fees and costs. Defendant contends it is entitled to a total of \$3,132,076.90. The receiver has stated that after a \$200,000 holdback, the total amount available for disbursement is currently \$3,030,140.29. <u>Merits:</u> Plaintiff does not oppose the motion except to the extent that Defendant seeks to collect additional interest during the stay of

disbursement pending appeal. Plaintiff contends that the prior order was not a judgment and there is no legal basis for accrual of additional interest.

Defendant seeks additional interest on the principal sum of \$1,957,000.00 at the contractual rate of 10% per annum for the time period between approximately the time the prior motion for disbursement and the present motion was filed (6/1/24 – 5/1/26), for total additional interest of \$375,091.67 (1.9167 years x \$195,700.00).

Defendant cites the following language of the promissory note and deed of trust:

“Interest Rate. Commencing on the Closing Date, interest shall accrue on the unpaid principal balance of this Note at a rate per 360-day period equal to ten and 00/100 percent (10.00%) per annum (the ‘Loan Rate’).”

(Promissory Note, ¶ 2 [Ahdoot Decl., Ex. K].)

“2.1 Obligations Secured. Trustor makes this grant and assignment for the purpose of securing the following obligations (‘Secured Obligations’):

[¶¶]

(e) All interest and charges on all obligations secured hereby, including, without limitation, prepayment charges, late charges and loan fees”

(Deed of Trust, ¶ 2.1(e) [Ahdoot Decl., Ex. L].)

Defendant further asserts that the ex parte application which was granted on 9/23/24, staying disbursement, did not seek a stay of accruing interest – only a stay of disbursement. Rather, the application acknowledged that during the requested stay the funds would be “in the receiver’s account gaining interest.” (Plaintiff’s 9/17/24 Ex Parte Application, pp. 2, 5.)

Defendant has shown that the loan documents entitle it to interest during the period in which the principal balance remained unpaid, including the time period during which the disbursement was stayed pending appeal. Therefore, the request for interest in the amount of \$375,091.67 is granted. As set out at page 15 of the Motion, United Lender is therefore entitled to a total amount of \$3,132,076.90, including \$876 in costs on appeal.

The receiver shall promptly disburse \$3,030,140.29 to United Lender and the receiver shall continue to make period payments as requested in the motion, subject to a holdback of \$200,000.00 or such lesser amount as the receiver deems necessary.